

HOUSE No. 4414

The Commonwealth of Massachusetts

PRESENTED BY:

Simon Cataldo

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the town administrator of the town of Carlisle.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Simon Cataldo</i>	<i>14th Middlesex</i>	<i>8/6/2025</i>

HOUSE No. 4414

By Representative Cataldo of Concord, a petition (accompanied by bill, House, No. 4414) of Simon Cataldo (by vote of the town) relative to the town administrator of the town of Carlisle. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the town administrator of the town of Carlisle.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law to the contrary, the Town of
2 Carlisle is authorized to amend its General Bylaws by adopting a Town Administrator Bylaw
3 which provides authority to the Town Administrator for the appointment, removal, and
4 management of all Town employees, which, except as provided herein, would otherwise be
5 appointed by the Select Board or other Town official or multiple member body.

6 SECTION 2. The Town of Carlisle General Bylaws are hereby amended inserting a new
7 Section, 3.3 Town Administrator, to be inserted before the existing Bylaw Section 3.3 Treasurer,
8 with all Article III Bylaw sections correspondingly renumbered to accommodate the new Section
9 3.3, as follows:

10 3.3 Town Administrator

11 3.3.1 The Select Board, as the Chief Executive Officer of the town, shall appoint, and
12 may remove, a Town Administrator. The Town Administrator shall be the primary agent of the

Select Board and shall be responsible for managing daily municipal operations at the direction of the Select Board; provided, that the Town Administrator is not a policy creating position, and shall not have the authority to create or set policy independent of Select Board approval or authorization, nor may they do so on behalf of other town officials or multiple member bodies.

Except as specifically provided herein, the provisions of this bylaw do not transfer or otherwise delegate the authority of the Select Board, or any other town officials or multiple member bodies to the Town Administrator.

3.3.2 Pursuant to this bylaw, the authority to appoint and remove certain employees of the town is provided to the Town Administrator; provided that the Select Board shall appoint and may remove a Police Chief, a Fire Chief, a Town Clerk, Town Treasurer / Tax Collector, and Town Counsel; and provided further that employees of the Carlisle Public Schools, Fire Department, and Gleason Public Library, and the Board of Health shall be appointed, removed, and managed by the School Committee or Superintendent, Fire Chief, or Gleason Public Library Trustees or Director, or the Board of Health respectively.

Except as provided herein, the Town Administrator shall have authority to appoint, and may discipline or remove, all other employees of the town, subject to the provisions of the town's duly adopted personnel policies.

Where any employee is responsible for assisting the operations of an elected or appointed town official or multiple member body, the Town Administrator shall consult with such official or multiple member body prior to making an appointment or removal under this section. In the event of a vacancy, disability or absence anticipated to be greater than 30 days of any appointed

town official or employee, the Town Administrator may appoint another person to serve in an acting or interim capacity for the period of such vacancy, disability or absence.

3.3.3 The Town Administrator shall supervise and manage the employees, operations, and staff resources of all town departments and employees, except for employees of the School Department, Fire Department, and Gleason Public Library, and the Board of Health. In this supervisory and managerial capacity, the Town Administrator shall ensure efficient operation of all town departments and facilities by implementing the policy directives of the Select Board, or other town official or multiple member body as applicable.

3.3.4 The Town Administrator shall perform such other duties as directed by the Select Board pursuant to Select Board policies.

SECTION 3. This act shall take effect upon its passage.